

# **CV-25-001199 ALMANZA, KRISTOPHER vs MODESTO ON ICE INC - Defendant's Motion for Summary Judgment - DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Request for Judicial Notice In support of its motion, Defendant asks the Court to take judicial notice of the Second Amended Complaint and the answer to the Second Amended Complaint. The request for judicial notice is unnecessary as the Court probably need not make such a ruling to consider papers filed in the instant case. (See *Bienville Water Supply Co. v. City of Mobile* (1902) 186 U.S. 212, 217.) Objections With regard to Defendant's objections to the testimony of Plaintiff's expert, it appears that most of the objections go to weight, not admissibility. With that stated, the Court SUSTAINS the objection to inclusion of Defendant's insurance policy. Nonetheless, sustaining that objection does not salvage Moving Defendant's motion. Legal Standards A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . ." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant meets their burden of showing that a cause of action has no merit if the party shows that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c(p)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff, who must show that "a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (*Ibid.*) "Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party's right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party's are liberally construed." (*Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (*Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant's burden. (*Anderson v. Metalclad Insulation Corp.* (1999) 72 Cal.App.4th 284, 297.) Discussion Defendant's motion for summary judgment argues that the doctrine of primary assumption of risk bars Plaintiff's claim for negligence. "Generally, the participation in an active sport is governed by primary assumption of risk, and a defendant owes no duty of care to protect a plaintiff against risks inherent in the sport. [Citation.]" (*Staten v. Superior Court* (1996) 45 Cal.App.4th 1628, 1632–1633.) "Although a defendant owes no duty to protect against the risks inherent in a sport, the defendant generally owes a duty not to increase the risks of the activity beyond the risks inherent in the sport. [Citation.]" (*Id.*, 1633.) A motion for summary judgment is framed by the pleadings. (See *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381; *Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67.) Here, there are two events that give rise to the pleading: (1) the state of the ice; and (2) Defendant's employees' alleged failure to timely offer aid (see SAC ¶¶ 18, 22, 44). The only fact that Moving Defendant lists for the latter issue is SUF No. 18: "Plaintiff claims in discovery and the operative complaint after he fell employees of Modesto On Ice, Inc. refused to call him an ambulance but at his deposition he testified and clarified they did not refuse to call him an ambulance." Plaintiff disputes this characterization. (See Resp. Sep. Stmt., SUF No. 18; AMF Nos. 6-8.) As to the state of the ice, Plaintiff provides an expert declaration from John Spengler. The Spengler declaration asserts an expertise in sports safety generally and cites to what he asserts are generally accepted norms. While the declaration in places appears to use a standard inconsistent with assumption of the risk rules, it does assert that the alleged degree of standing water was an abnormal condition which presented an increased risk to a skater. Plaintiff's other issue was with the timing of the offer to render aid. Specifically, in his deposition, Plaintiff stated that immediately after his injury, he had to partially crawl off the ice; no employees helped him. Then two employees came up to him. He asked for paramedics or a wheelchair. They stated that they did not have either available and instead questioned him regarding the accident. Only after gaining material information from him regarding the accident did they offer to call 911, by which time, Plaintiff had determined that it would be faster to have his mother (who was present at the rink) drive him to the hospital. Plaintiff's assertion of damages from the failure to provide timely aid is inferential, but does appear to exist. Because the separate statement does not adequately refute the issue of failing to provide timely aid, Moving Defendant has failed to meet its initial burden of proof.

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## Objections

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## Discussion

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